

HEADNOTE

“The Rules of Procedure must be applied flexibly and in a balanced manner, in accordance with Rule 1.1 RoP in conjunction with point 4 of the Preamble to the Rules of Procedure, with the requisite degree of discretion, so that the proceedings can be conducted as efficiently and cost-effectively as possible. Accordingly, these principles require, in the circumstances of the present case, that the oral hearing be conducted in the English language, even though the language of the proceedings remains German.”

COURT
Local Division in Munich

PROCEEDINGS
Procedural order

PATENT
EP3611989

Method and apparatus for transmitting
wireless local area network information

KEYWORDS

Change of procedural language (Rule 322 ...)

Language of interim hearing (Rule 105.3 R...)

Language of oral proceedings (Rule 14.2.c ...)

Order of first instance court of Unified Pate...

Rule 1 Application of the Rules and general principles of interpretation

SUMMARY

The Local Division in Munich issued a procedural order. The patent at issue relates to a method and apparatus for transmitting wireless local area network information. According to the headnotes of the decision, the Rules of Procedure must be applied with flexibility and discretion to ensure efficient and cost-effective proceedings, which means that the court permitted the oral hearing to be conducted in English despite German remaining the official language of the case.